

1 ENGROSSED SENATE
2 BILL NO. 1496

By: Gollihare of the Senate

3 and

4 Bashore of the House

5
6 An Act relating to the Oklahoma State Bureau of
7 Investigation; amending 74 O.S. 2021, Sections 150.5,
8 150.7, and 150.11, which relate to investigations,
9 powers and duties of the Director of the Oklahoma
10 State Bureau of Investigation, and evidentiary
11 property; clarifying confidentiality provisions;
12 stating certain records not subject to subpoena or
13 subpoena duces tecum; authorizing disclosure of
14 certain statistical data; authorizing Director to
15 enter into certain agreements; authorizing Director
16 to digitally store and dispose of certain records;
17 authorizing Director to accept certain monies to be
18 deposited in certain fund; authorizing certain
19 evidence disposal; requiring certain affidavit;
20 clarifying property sale provisions; permitting
21 refusal to sell property under certain circumstance;
22 updating statutory language and references; and
23 providing an effective date.

24
BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 74 O.S. 2021, Section 150.5, is
amended to read as follows:

Section 150.5. A. 1. Oklahoma State Bureau of Investigation
investigations not covered under Section 150.2 of this title shall
be initiated at the request of the following persons:

a. the Governor,

b. the Attorney General,

- 1 c. the Council on Judicial Complaints upon a vote by a
2 majority of the Council,
- 3 d. the chair of any ~~Legislative Investigating Committee~~
4 legislative investigating committee which has been
5 granted subpoena powers by resolution, upon
6 authorization by a vote of the majority of the
7 ~~Committee~~ committee,
- 8 e. the Director ~~of the Department~~ of Human Services, or
9 designee, as authorized by Section 1-2-105 of Title
10 10A of the Oklahoma Statutes, or
- 11 f. a district court judge as authorized by Section 1-2-
12 103 of Title 10A of the Oklahoma Statutes.

13 2. Requests for investigations shall be submitted in writing
14 and shall contain specific allegations of wrongdoing under the laws
15 of ~~the State of Oklahoma~~ this state.

16 B. The Governor may initiate special background investigations
17 with the written consent of the person who is the subject of the
18 investigation.

19 C. The chair of any Senate committee which is fulfilling the
20 statutory responsibility for approving nominations made by the
21 Governor may, upon a vote by a majority of the committee and with
22 the written consent of the person who is to be the subject of the
23 investigation, initiate a special background investigation of any
24 nominee for the Oklahoma Horse Racing Commission as established by

1 Section 201 of Title 3A of the Oklahoma Statutes or any nominee for
2 the ~~Board of Trustees~~ board of trustees of the Oklahoma Lottery
3 Commission as established by Section 704 of Title 3A of the Oklahoma
4 Statutes. The Bureau shall submit a report to the committee within
5 thirty (30) days of the receipt of the request. Any consideration
6 by the committee of a report from the Bureau shall be for the
7 exclusive use of the committee and shall be considered only in
8 executive session.

9 D. 1. All records relating to any investigation being
10 conducted by the Bureau, including any records of laboratory
11 services provided to law enforcement agencies pursuant to paragraph
12 1 of subsection A of Section 150.2 of this title, shall be
13 confidential and privileged and shall not be open to the public or
14 to the Oklahoma State Bureau of Investigation Commission except as
15 provided in Section 150.4 of this title; provided, however, officers
16 and agents of the Bureau may disclose, at the discretion of the
17 Director of the Oklahoma State Bureau of Investigation, such
18 investigative information to:

- 19 a. officers and agents of federal, state, county, tribal,
20 or municipal law enforcement agencies and to ~~district~~
21 ~~attorneys, in the furtherance of criminal~~
22 ~~investigations~~ prosecutorial entities for the purpose
23 of criminal investigations and prosecutions within
24 their respective jurisdictions,

- 1 b. employees of the Department of Human Services in the
2 furtherance of child abuse investigations, and
3 c. appropriate accreditation bodies for the purposes of
4 the Bureau's obtaining or maintaining accreditation.

5 2. Any unauthorized disclosure of any information contained in
6 the confidential files of the Bureau, not otherwise prepared for the
7 purpose of statistical data as referenced in this section, shall be
8 a misdemeanor. The person or entity authorized to initiate
9 investigations in this section, and the Attorney General in the case
10 of investigations initiated by the Insurance Commissioner, shall
11 receive a report of the results of the requested investigation. The
12 person or entity requesting the investigation may give that
13 information only to the appropriate prosecutorial officer or agency
14 having statutory authority in the matter if that action appears
15 proper from the information contained in the report, and shall not
16 reveal or give such information to any other person or agency.
17 Violation hereof shall be deemed willful neglect of duty and shall
18 be grounds for removal from office.

19 3. Investigative records of the Bureau shall not be subject to
20 a subpoena or subpoena duces tecum in any private civil action
21 unless, after reasonable notice to the Bureau, or any authorized
22 governmental agency that has an interest in the information, after a
23 hearing, wherein the party issuing the subpoena demonstrates and a
24 court finds that the need for the record or records sought

1 substantially outweighs the presumption of the confidentiality of
2 such record or records and, further, upon making such a finding, a
3 court has determined that disclosure of the record or records would
4 not jeopardize any investigation by the Bureau or authorized
5 governmental agency that has an interest in the information. In the
6 event the court orders the dissemination of any record or part of a
7 record, the court shall enter a protective order consistent
8 herewith.

9 E. It shall not be a violation of this section to reveal
10 otherwise confidential information to outside agencies or
11 individuals who are providing interpreter services, questioned
12 document analysis, laboratory services, or other ~~specialized~~
13 services that are necessary ~~in the~~ to or that may provide assistance
14 ~~of in~~ Bureau investigations. Individuals or agencies receiving the
15 confidential and investigative information or records or results of
16 laboratory services provided to the Bureau by those agencies or
17 individuals, shall be subject to the confidentiality provisions and
18 requirements established in subsection D of this section.

19 F. It shall not be a violation of this section to reveal for
20 training or educational purposes otherwise confidential information
21 from records relating to any investigation previously conducted by
22 the Bureau, including any records of laboratory services provided to
23 law enforcement agencies pursuant to paragraph 1 of subsection A of
24 Section 150.2 of this title, so long as ten (10) or more years have

1 passed since the production of the information or record or such
2 information or record relates to an investigation that is closed by
3 way of conviction or plea of guilty or nolo contendere.

4 G. It shall not be a violation of this section to reveal
5 otherwise confidential information from records relating to any
6 investigation being conducted by the Bureau, including any records
7 of laboratory services provided to law enforcement agencies pursuant
8 to paragraph 1 of subsection A of Section 150.2 of this title or to
9 the public, provided, release of the confidential information has
10 been authorized by the Director of the Bureau for the purposes of
11 developing or obtaining further information reasonably necessary to
12 the successful conclusion of a criminal investigation being
13 conducted by the Bureau or authorized by the Director of the Bureau
14 for the purpose of advising crime victims or family representatives
15 of homicide victims regarding the status of a pending investigation
16 or to provide a summary of a closed investigation when necessary.

17 H. The State Treasurer shall initiate a complete background
18 investigation of the positions with the written consent of the
19 persons who are the subject of the investigation pursuant to
20 subsection I of Section 71.1 of Title 62 of the Oklahoma Statutes.
21 The Bureau shall advise the State Treasurer and the ~~Cash Management~~
22 ~~and Investment Oversight Commission~~ Invest in Oklahoma Board in
23 writing of the results of the investigation.

1 I. The Bureau may report statistical data that does not include
2 personal information to law enforcement and the public. As
3 authorized by the Director, the Bureau may also enter into
4 agreements with federal, state, county, tribal, or municipal law
5 enforcement agencies for the dissemination of otherwise confidential
6 information from investigations or laboratory services conducted by
7 the Bureau where the purpose of the information disseminated is in
8 furtherance of criminal investigations and crime prevention.

9 SECTION 2. AMENDATORY 74 O.S. 2021, Section 150.7, is
10 amended to read as follows:

11 Section 150.7. The Director of the Oklahoma State Bureau of
12 Investigation shall have the following powers, duties, and
13 responsibilities:

14 1. To appoint or dismiss a Deputy Director to assist in the
15 administration of the Bureau;

16 2. To supervise the maintaining of all reports and records of
17 the Bureau and to promulgate administrative rules concerning the
18 destruction and retention of such records. Such records shall not
19 be transferred to the custody or control of the Archives and Records
20 Commission or be subject to the provisions of Section 590 of Title
21 21 of the Oklahoma Statutes or the Records Management Act. The
22 Director may, pursuant to adopted and promulgated administrative
23 rule, order destruction of records deemed to be no longer of value
24 to the Bureau, excluding criminalistic and investigative records

1 which shall forever be kept and maintained. The Director may cause
2 any or all original papers or records kept by the Bureau to be
3 digitally scanned or imaged and stored on a computer or digital
4 storage medium in lieu of retention of the original records or
5 papers. However, the digitally stored records or papers shall be an
6 accurate and complete reproduction of the original papers or records
7 and stored in a conveniently accessible manner. Following the
8 scanning, imaging, and digital storage of the original records or
9 papers, the Director may authorize the disposal, archival storage,
10 or destruction of the original records or papers;

11 3. To report to the Commission at each regular meeting, or as
12 directed by the Commission, the current workload of the Bureau.
13 Such reports shall be submitted by category of the persons or
14 entities authorized to initiate investigations as provided for in
15 subsection A of Section 150.5 of this title, and any other category
16 the Commission may request which does not violate the
17 confidentiality restrictions imposed in Sections 150.1 through ~~152.9~~
18 152.12 of this title. Such reports shall contain the following
19 information:

- 20 a. ~~what~~ the types of investigations that are pending,
- 21 b. ~~what~~ the new types of investigations that have been
22 opened,
- 23 c. ~~what~~ the types of investigations that have been
24 closed, and

1 d. ~~what~~ the criminal charges that have been filed as a
2 result of Bureau investigations.

3 The reports shall not contain any information on the individual
4 subjects of the investigation or persons questioned in connection
5 with an investigation. These reports shall be open for public
6 inspection;

7 4. To designate positions, appoint employees, and fix salaries
8 of the Bureau, other than the salaries established by ~~subsection A~~
9 ~~of~~ Section 150.6a of this title, and to authorize the payment of
10 necessary certification expenses for the employees;

11 5. To authorize the purchase and issuance of uniforms for all
12 law enforcement officers, criminalists, and other personnel of the
13 Bureau as designated by the Director and to purchase and issue
14 necessary equipment for all employees of the Bureau. All uniforms
15 and equipment shall be used only in the performance of the official
16 duties of the officers, criminalists, or other personnel and shall
17 remain the property of the Bureau except as otherwise provided by
18 law;

19 6. To accept gifts, bequests, devises, contributions, and
20 grants, whether public or private, including funds from federal and
21 state agencies, or funds from any other source for use in furthering
22 the operations of the Bureau. All monies received by the Director
23 pursuant to this subsection shall be deposited to the credit of the
24 OSBI Revolving Fund;

1 7. To enter into local cooperative agreements with local law
2 enforcement agencies for the purpose of appointing affiliate task
3 force agents to assist the Bureau in the investigation of major
4 crimes under the jurisdiction of the Bureau. Affiliate task force
5 agents shall be employees and commissioned law enforcement officers
6 of the local law enforcement agency entering into agreement with the
7 Bureau and shall not be employees of the Bureau. Affiliate task
8 force agents shall have general peace officer powers and the
9 authority to arrest persons throughout the state while serving as an
10 affiliate task force agent. Affiliate task force agents serve
11 solely at the discretion and will of the Director. The Director may
12 renew, suspend, or revoke any agreement appointing an affiliate task
13 force agent at any time; and

14 ~~7.~~ 8. To enter into interagency transfers with the Oklahoma
15 Highway Patrol, the Oklahoma State Bureau of Narcotics and Dangerous
16 Drugs Control, and the ~~Oklahoma~~ Alcoholic Beverages Beverage Laws
17 Enforcement Commission as provided for in ~~Section 1 of this act~~
18 Section 11000 of this title.

19 SECTION 3. AMENDATORY 74 O.S. 2021, Section 150.11, is
20 amended to read as follows:

21 Section 150.11. A. ~~All~~ Except as provided for in Section
22 1024.4 of Title 21 of the Oklahoma Statutes, all property which
23 comes into the possession of the Oklahoma State Bureau of
24 Investigation (OSBI), whether the same is stolen, embezzled, or

1 otherwise, which the Bureau has held for at least one (1) year
2 unless ~~said~~ the property is perishable, may be disposed of by order
3 of an Oklahoma County district court if the owner or owners of ~~said~~
4 the property are unknown or have not claimed the same. The Director
5 of the Oklahoma State Bureau of Investigation shall then be
6 authorized to sell, deposit, donate, destroy, or otherwise dispose
7 of such property or any part thereof which is no longer needed to be
8 held as evidence or otherwise used in connection with any
9 litigation.

10 B. 1. If cash or other legal tender is the subject of the
11 action, the Director shall file a petition in the district court of
12 Oklahoma County requesting authority to forfeit and deposit the
13 funds. The petition shall include the following information:

- 14 a. description of the property,
- 15 b. approximate date that the property came into
16 possession of the Director, and
- 17 c. the names of the owner or owners, if known.

18 2. Upon the filing of the petition, notice of at least ten (10)
19 days shall be given to each known owner by the Director of the OSBI
20 by mailing a copy of the petition and notice of hearing to the last-
21 known address of each owner by certified mail.

22 3. Notice of the hearing shall also be posted at the Oklahoma
23 County courthouse at the regular place assigned for the posting of
24 legal notices and in the public lobby at OSBI headquarters.

1 4. If no owner appears and establishes ownership to the cash or
2 legal tender, the court shall enter an order authorizing the
3 forfeiture of the funds to the OSBI. All monies forfeited shall be
4 deposited into the OSBI Revolving Fund.

5 C. 1. For disposition of all other seized property, the
6 Director shall file a petition in the district court of Oklahoma
7 County requesting authority to conduct a sale of, or otherwise
8 dispose of, the property as provided herein. The petition shall
9 include the following information:

- 10 a. description of the property,
- 11 b. approximate date that the property came into the
- 12 possession of the Director, and
- 13 c. the names of the owner or owners, if known.

14 2. Upon the filing of the petition, notice of at least ten (10)
15 days shall be given to each known owner by the Director of the OSBI
16 by mailing a copy of the petition and notice of hearing by certified
17 mail to the last-known address of each owner. An affidavit of
18 notice being sent shall be filed with the court by a representative
19 of the OSBI.

20 3. Notice of the hearing shall also be posted at the Oklahoma
21 County courthouse at the regular place assigned for the posting of
22 legal notices and in the public lobby at OSBI headquarters.

23 4. If no owner appears and establishes ownership to the
24 property, the court ~~shall~~ may enter an order authorizing the

1 Director to sell the property at public auction or Internet auction,
2 which may include online bidding, to the highest bidder after notice
3 of at least five (5) days of the auction has been given by
4 publication in one issue of a legal newspaper of record in Oklahoma
5 County. If the property is offered for sale at public auction,
6 including an Internet auction, and no bid is received that exceeds
7 fifty percent (50%) of the fair-market value of the property, such
8 value to be announced prior to the sale, the Director may refuse to
9 sell the item pursuant to any bid received.

10 5. ~~The~~ In the event of the sale of the property, the Director
11 shall make a return of sale, and when confirmed by the court, the
12 order confirming the sale shall vest title of the property to the
13 purchaser. The money received from the sale shall be deposited in
14 the OSBI Revolving Fund.

15 SECTION 4. This act shall become effective November 1, 2026.
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1 Passed the Senate the 25th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives